

UNITED STATES DISTRICT COURT

for the
Southern District of California

SEALED

In the Matter of the Search of
*(Briefly describe the property to be searched
or identify the person by name and address)*

Case No. '23 MJ2081

Apple Inc.
1 Apple Park Way, Cupertino, CA. Host: 303-520-7458,
gwithespoon24@gmail.com ("Target Account")

APPLICATION FOR A WARRANT BY TELEPHONE OR OTHER RELIABLE ELECTRONIC MEANS

I, a federal law enforcement officer or an attorney for the government, request a search warrant and state under penalty of perjury that I have reason to believe that on the following person or property *(identify the person or describe the property to be searched and give its location)*:

See Attachment A, incorporated herein by reference.

located in the Northern District of California, there is now concealed *(identify the person or describe the property to be seized)*:

See Attachment B, incorporated herein by reference.

The basis for the search under Fed. R. Crim. P. 41(c) is *(check one or more)*:

- ☒ evidence of a crime;
☐ contraband, fruits of crime, or other items illegally possessed;
☐ property designed for use, intended for use, or used in committing a crime;
☐ a person to be arrested or a person who is unlawfully restrained.

The search is related to a violation of:

Code Section
15 USC 78(b) & 78ff
18 USC 371

Insider Trading
Conspiracy

Offense Description

The application is based on these facts:

See Affidavit of FBI Special Agent Leah Chambers, which is hereby incorporated by reference and made part hereof.

- ☒ Continued on the attached sheet.
☐ Delayed notice of _____ days *(give exact ending date if more than 30 days: _____)* is requested under 18 U.S.C. § 3103a, the basis of which is set forth on the attached sheet.

Jessica Hefron
Applicant's signature

Jessica Hefron, FBI Special Agent
Printed name and title

Attested to by the applicant in accordance with the requirements of Fed. R. Crim. P. 4.1 by
Telephone *(specify reliable electronic means)*.

Date: 06/07/2023

William V. Gallo
Judge's signature

City and state: San Diego, California

Hon. William V. Gallo, U.S. Magistrate Judge
Printed name and title

1 ATTACHMENT A
2 PROPERTY TO BE SEARCHED
3

4 This warrant applies to information associated with Apple ID affiliated with the
5 below identifiers, that is stored at premises owned, maintained, controlled, or
6 operated by Apple Inc., a company headquartered at Apple Inc., 1 Apple Park Way,
7 Cupertino, CA 95014:

8 Account Holder: Grant Witherspoon

9 Account Number: (303) 520-7458

10 Account ID: gwitherspoon24@gmail.com

11 (**"Target Account"**)
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1 ATTACHMENT B
2 ITEMS TO BE SEIZED

3 **I. Service of Warrant**

4 The officer executing the warrant shall permit Apple Inc. ("Apple"), as custodian
5 of the computer files described below, to locate the files and copy them onto removable
6 electronic storage media and deliver the same to the officer.

7 **II. Items to be Provided by Apple**

8 To the extent that the information described in Attachment A is within the
9 possession, custody, or control of Apple, regardless of whether such information is
10 located within or outside of the United States, including any messages, records, files,
11 logs, or information that have been deleted but are still available to Apple, or have been
12 preserved pursuant to a request made under 18 U.S.C. § 2703(f), Apple is required to
13 disclose the following information to the government, in unencrypted form whenever
14 available, for the account or identifier listed in Attachment A:

- 15 a. All records or other information regarding the identification of the account,
16 to include full name, physical address, telephone numbers, the date on
17 which the account was created, the length of service, the IP address used
18 to register the account, account status, associated devices, methods of
19 connecting, and means and source of payment (including any credit or
20 bank account numbers);
- 21 b. All records or other information regarding the devices associated with, or
22 used in connection with, the account (including all current and past trusted
23 or authorized iOS devices and computers, and any devices used to access
24 Apple services), including serial numbers, Unique Device Identifiers
25 ("UDID"), Advertising Identifiers ("IDFA"), Global Unique Identifiers
26 ("GUID"), Media Access Control ("MAC") addresses, Integrated Circuit
27 Card ID numbers ("ICCID"), Electronic Serial Numbers ("ESN"), Mobile
28 Electronic Identity Numbers ("MEIN"), Mobile Equipment Identifiers

1 (“MEID”), Mobile Identification Numbers (“MIN”), Subscriber Identity
2 Modules (“SIM”), Mobile Subscriber Integrated Services Digital Network
3 Numbers (“MSISDN”), International Mobile Subscriber Identities
4 (“IMSI”), and International Mobile Station Equipment Identities
5 (“IMEI”);

- 6 c. The contents of all instant messages associated with the account from
7 **October 10, 2021 to December 20, 2021**, including stored or preserved
8 copies of instant messages (including iMessages, SMS messages, and
9 MMS messages) sent to and from the account (including all draft and
10 deleted messages), the source and destination account or phone number
11 associated with each instant message, the date and time at which each
12 instant message was sent, the size and length of each instant message, the
13 actual IP addresses of the sender and the recipient of each instant message,
14 and the media, if any, attached to each instant message;
- 15 d. The contents of all files and other records stored on iCloud, including all
16 iOS device backups, all Apple and third-party app data, all files and other
17 records related to iCloud Photo Sharing, My Photo Stream, iCloud Photo
18 Library, iCloud Drive, iWork (including Pages, Numbers, Keynote, and
19 Notes), iCloud Tabs and bookmarks, and iCloud Keychain, and all address
20 books, contact and buddy lists, notes, reminders, calendar entries, images,
21 videos, voicemails, device settings, and bookmarks;
- 22 e. All activity, connection, and transactional logs for the account (with
23 associated IP addresses including source port numbers), including
24 FaceTime call invitation logs, messaging and query logs (including
25 iMessage, SMS, and MMS messages), iCloud logs, iTunes Store and App
26 Store logs (including purchases, downloads, and updates of Apple and
27 third-party apps), My Apple ID and iForgot logs, sign-on logs for all Apple
28 services, Game Center logs, Find My iPhone and Find My Friends logs,

1 logs associated with web-based access of Apple services (including all
2 associated identifiers), and logs associated with iOS device purchase,
3 activation, and upgrades;

4 f. All records and information regarding locations where the account or
5 devices associated with the account were accessed, including all data
6 stored in connection with Location Services, Find My iPhone, Find My
7 Friends, and Apple Maps to include date and time stamps;

8 g. All records pertaining to the types of service used;

9 h. All records pertaining to communications between Apple and any person
10 regarding the account, including contacts with support services and records
11 of actions taken; and

12 i. All files, keys, or other information necessary to decrypt any data produced
13 in an encrypted form, when available to Apple (including, but not limited
14 to, the keybag.txt and fileinfolist.txt files).

15 The Court directs the Service Provider not to notify any other person of the
16 existence of this warrant until **December 2, 2023**, absent further order of the Court. The
17 Court finds reason to believe that such notification will result in an adverse consequence
18 as provided at 18 U.S.C. 2705(b).

19 **II. ITEMS TO BE SEIZED**

20 All information described above that constitutes evidence of violations of Title
21 18, United States Code, Section 371 (Conspiracy); and Title 15, United States Code,
22 Sections 78j(b) and 78ff (Insider Trading), (the “**Subject Offenses**”); limited to the
23 period of **October 10, 2021 to December 20, 2021** and to the seizure of
24 communications of any form, writings, images, call logs, contacts, records, videos,
25 attachments, internet searches, location data, or photographs:

26 a. tending to identify the purchase or control of shares of Del Taco
27 Restaurants Inc. (“TACO”), including the acquisition, holdings in, or
28 disposition of such shares;

- b. tending to identify that Grant Witherspoon or other co-conspirators came into possession of material non-public information about TACO;
- c. tending to identify that Witherspoon or other co-conspirators shared, or attempted to share, material non-public information about TACO with each other or anyone else;
- d. tending to identify that Witherspoon or other co-conspirators intended to trade securities, or to tip others for the purpose of further tipping or of trading securities, on the basis of material non-public information about TACO;
- e. tending to identify monetary, or non-monetary compensation or gifts for material non-public information regarding TACO;
- f. tending to identify the relationship or frequency of contact between Witherspoon, and other co-conspirators;
- g. tending to provide context to any other communication reflecting the criminal activity described in this affidavit including any communication sent or received in temporal proximity to any relevant communication;
- h. tending to identify co-conspirators in a scheme to engage in insider trading based on material nonpublic information about TACO.

which are evidence of violation of Title 18, United States Code, Section 371 (Conspiracy); and Title 15, United States Code, Sections 78j(b) and 78ff (Insider Trading). The seizure and search of the **Target Account** shall follow the procedures outlined in the supporting affidavit.

TWIBRIGHT OPTAR 0-14-17-36-3-1